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General Knowledge

Indian Polity

STUDY NOTES

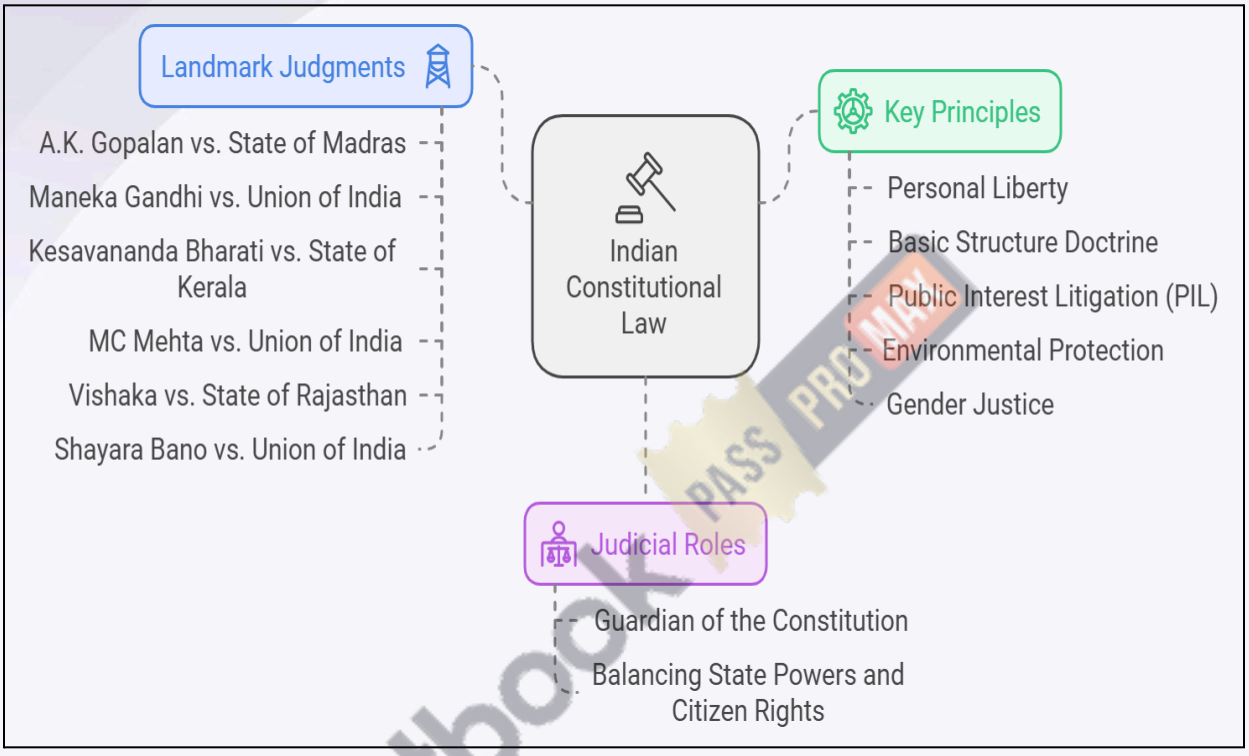
Important Constitutional Cases

IMPORTANT CASES RELATED TO CONSTITUTION

Introduction

- Indian constitutional law has evolved significantly through landmark judgments that have shaped the interpretation and application of the Constitution.
- These judgments not only clarify the scope and limitations of fundamental rights but also address key principles like **personal liberty**, **judicial independence**, **social justice**, **gender equality**, **environmental protection**, and **constitutional governance**.
- The judiciary, as the **guardian** of the **Constitution**, has played a pivotal role in maintaining the delicate balance between the powers of the state and the rights of citizens.
- Landmark cases like **A.K. Gopalan vs. State of Madras** and **Maneka Gandhi vs. Union of India** have defined the contours of **personal liberty** under **Article 21**, while decisions like **Kesavananda Bharati vs. State of Kerala** have laid down the **Basic Structure Doctrine**, restricting Parliament's power to amend the Constitution.
- In addition, the judiciary has expanded the scope of justice through doctrines like **Public Interest Litigation (PIL)**, which ensures access to courts for marginalized groups, and rulings like **MC Mehta vs. Union of India**, which introduced the principle of absolute liability in **environmental jurisprudence**.

- The courts have also upheld **gender justice** and **equality** through cases like **Vishaka vs. State of Rajasthan** and **Shayara Bano vs. Union of India**, addressing **systemic discrimination** and **archaic practices.**
- These judgments are a testament to the **dynamic** nature of constitutional interpretation and the role of the courts in **upholding democracy**, individual rights, and the **rule of law**.



Personal Liberty and Fair Procedure

A.K. Gopalan vs. the State of Madras (1950):

- The petitioner, detained under the Preventive Detention Act, argued that his detention violated Articles 13, 19, 21, and 22 of the Constitution, making the Act unconstitutional.
- The Supreme Court ruled that Article 22 is a self-contained provision and must be adhered to independently.
- If the procedure for detention aligns with a law passed by the legislature, it is deemed valid, even if it limits Articles 14, 19, or 21.

This case established the precedence of "**procedure established by law**" over the concept of "**due process.**"

Maneka Gandhi vs. Union of India (1978):

- This case revisited the interpretation of personal liberty under Article 21 and examined whether the Passport Act fulfilled the requirement of a valid legal procedure.
- The Supreme Court held that the right to travel abroad falls under the ambit of personal liberty guaranteed by Article 21.
- It was further ruled that the "procedure established by law" must not only exist but also meet the criteria of fairness, justice, and reasonableness. Arbitrary or oppressive laws that curtail personal liberty cannot be upheld.

ADM Jabalpur vs. Shivakant Shukla (1976):

- During the Emergency period (1975-77), the Supreme Court ruled that individuals detained by the state could not invoke Article 226 for habeas corpus petitions to challenge their detention.
- The majority justified this by stating that Emergency powers were extraordinary and constitutionally valid.
- Justice H.R. Khanna dissented, arguing that detention without trial contradicts the fundamental principles of liberty. His dissent became iconic for advocating the sanctity of personal liberty.

This judgment was overruled in Justice K.S. Puttaswamy (Retd.) vs. Union of India (2017), where the Supreme Court acknowledged Khanna's dissent as the correct constitutional perspective.

Amendability of Fundamental Rights and Basic Structure Doctrine

Shankari Prasad vs. Union of India (1951):

- This case dealt with the First Constitutional Amendment, which added special provisions for land reform.
- The Supreme Court held that the power to amend the Constitution under Article 368 includes the ability to amend fundamental rights. The term "law" in Article 13(2) was interpreted as excluding constitutional amendments, as amendments are made using constituent power, not ordinary legislative power.

I.C. Golaknath vs. the State of Punjab (1967):

- Revisiting the issue of amending fundamental rights, the Supreme Court ruled by a narrow majority that constitutional amendments fall under the ambit of "law" as defined in Article 13(2).

- The Court further held that Parliament cannot amend Part III of the Constitution to abridge or take away fundamental rights.
- This judgment limited Parliament's amending power, creating significant political and legal debates on constitutional sovereignty.

Kesavananda Bharati vs. State of Kerala (1973):

- A 13-judge bench delivered the landmark judgment that introduced the Basic Structure Doctrine.
- The Court ruled that while Parliament has wide powers to amend the Constitution, it cannot alter its "basic structure," which includes elements like fundamental rights, separation of powers, and the rule of law.
- This decision overruled Golaknath, holding that amendments to the Constitution are not "laws" under Article 13 but are subject to judicial review to ensure they do not destroy its basic structure.

Minerva Mills vs. Union of India (1980):

- The validity of the 42nd Amendment, which curtailed judicial review and expanded Parliament's amending power, was challenged.
- The Supreme Court struck down clauses (4) and (5) of Article 368, stating that judicial review is a fundamental aspect of the Constitution's basic structure.
- The judgment reinforced the principle that the Constitution, not Parliament, is supreme.

IR Coelho vs. State of Tamil Nadu (2007):

- The Court ruled that laws added to the Ninth Schedule after April 24, 1973 (the date of the Kesavananda judgment), are subject to judicial review.
- Any such law that violates the basic structure of the Constitution can be struck down. This judgment emphasized the supremacy of the Constitution and the role of the judiciary as its guardian.
- Public Interest Litigation (PIL) and Social Justice

Mumbai Kamgar Sabha vs. Abdulbhai (1976):

- Justice V.R. Krishna Iyer laid the foundation for PIL in India, emphasizing that procedural technicalities should not obstruct justice.
- The Court held that legal proceedings must be accessible to the marginalized and disadvantaged, allowing representative actions and pro bono cases.

Sunil Batra vs. Delhi Administration (1978):

- The Supreme Court held that prisoners retain their fundamental rights under Article 21, though subject to reasonable restrictions due to incarceration.
- The judgment recognized the importance of prison justice and directed reforms to improve jail conditions.

Bandhua Mukti Morcha vs. Union of India (1984):

- The Court issued directives for the release and rehabilitation of bonded laborers, asserting that PIL can be used to address the grievances of marginalized groups.
- It emphasized that anyone acting in good faith can file a petition for the enforcement of the fundamental rights of disadvantaged individuals.
- Human Rights and Expanding Article 21

Right to Die with Dignity: Common Cause vs. Union of India (2018):

- The Court ruled that the right to life under Article 21 includes the right to die with dignity.
- Passive euthanasia and living wills were recognized, with guidelines provided for their implementation.

Right to Privacy: Justice K.S. Puttaswamy vs. Union of India (2017):

- The Supreme Court declared privacy a fundamental right under Article 21, asserting that it is intrinsic to personal liberty and dignity.
- The judgment has wide implications, including for data protection and surveillance laws.

Recognition of Transgender Rights: NALSA vs. Union of India (2014):

- The Court recognized transgender persons as the "third gender," affirming their rights under Articles 14, 19, and 21.
- The judgment directed governments to treat transgender individuals as socially and educationally backward, ensuring access to reservations and affirmative actions.

Gender Justice

Shah Bano Case (1985):

- The Supreme Court ruled that Section 125 of the CrPC, which mandates maintenance for destitute individuals, is secular and overrides personal laws.
- The judgment sparked a national debate on the intersection of personal laws and gender justice.

Vishaka vs. State of Rajasthan (1997):

- The Court laid down the Vishaka Guidelines to prevent sexual harassment in the workplace, emphasizing the right to a safe and dignified working environment for women.

Triple Talaq: Shayara Bano vs. Union of India (2017):

- The Court declared the practice of instant triple talaq unconstitutional, calling it arbitrary and violative of Article 14.

Sabarimala Temple Entry (2018):

- The Court allowed women of all ages to enter the Sabarimala Temple, stating that gender-based discrimination in matters of worship violates constitutional morality.

Joseph Shine vs. Union of India (2018):

- Section 497 of the IPC, criminalizing adultery, was struck down as unconstitutional for violating Articles 14, 15, and 21. The judgment emphasized gender equality and individual autonomy.

Environmental Protection

MC Mehta vs. Union of India (1986):

- The Supreme Court replaced the principle of strict liability with absolute liability for hazardous industries.
- It mandated that compensation should be proportionate to the harm caused, ensuring a deterrent effect.

Social Justice and Reservations

Indra Sawhney vs. Union of India (1992):

- The Court upheld 27% of OBC reservations but introduced key principles:
- A 50% ceiling on reservations.
- Exclusion of the creamy layer.
- No reservations in certain high posts.
- It clarified that caste, not economic status, is the basis for identifying backward classes under Article 16(4).

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Key Cases Detailed Table:

Case Name	Background	Judgment	Relevance
A.K. Gopalan Case (1950)	Detained under the Preventive Detention Act without trial.	Upheld detention; Article 21 narrowly interpreted.	The limited scope of personal liberty protections under Article 21.
Shankari Prasad Case (1951)	A challenge to the First Amendment amending fundamental rights.	Parliament can amend fundamental rights under Article 368.	Affirmed legislative supremacy over judicial interpretations.
Berubari Union Case (1960)	Transfer of Berubari Union territory to Pakistan.	Such transfers require a constitutional amendment.	Highlighted the importance of constitutional safeguards in territorial integrity.
Golaknath Case (1967)	Examined Parliament's power to amend fundamental rights.	Fundamental rights are unamendable; Article 13 applies to constitutional amendments.	Strengthened individual rights against legislative encroachment.
Kesavananda Bharati Case (1973)	Challenge to Parliament's power to amend the Constitution.	Introduced the Basic Structure doctrine; Parliament cannot alter the Constitution's basics.	A cornerstone of constitutional law, ensuring certain principles remain inviolable.
Indira Nehru Gandhi v. Raj Narain (1975)	Revolved around the 39th Amendment insulating PM elections from judicial scrutiny.	Struck down the amendment for violating the Constitution's basic structure.	Reinforced judiciary's role in protecting electoral integrity.

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Maneka Gandhi Case (1978)	Passport impounded without due process.	Expanded Article 21 to include living with dignity; laws must be just and reasonable.	Broadened personal liberty protections significantly.
Minerva Mills Case (1980)	Challenged provisions of the 42nd Amendment curtailing judicial review.	Reaffirmed the Basic Structure doctrine; struck down unconstitutional provisions.	Reinforced supremacy of the Constitution and the judiciary's role.
Waman Rao Case (1981)	Validity of amendments made before the Kesavananda Bharati case.	Laws in the 9th Schedule are not subject to judicial review.	Further established the Basic Structure doctrine.
Shah Bano Begum Case (1985)	Muslim woman's right to alimony after divorce.	Upheld her right to maintenance under secular laws.	This sparked political debate, leading to the Muslim Women Act, of 1986.
MC Mehta v. Union of India (1986)	Environmental liabilities of hazardous industries.	Established Absolute Liability for hazardous industries.	Enhanced environmental protection standards and corporate accountability.
Indra Sawhney Case (1992)	Constitutional validity of OBC reservations.	Upheld 27% of reservations for OBCs; total reservations should not exceed 50%.	Shaped affirmative action policies and established guidelines for reservations.
S. R. Bommai Case (1994)	Use of Article 356 for President's Rule in states.	Imposed strict limitations on the misuse of the President's Rule.	Reinforced federal structure and state autonomy.
Vishaka v. State of Rajasthan (1997)	Workplace sexual harassment case.	Laid down Vishaka Guidelines to prevent harassment.	Pioneered legal standards for workplace safety and women's rights.

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Samatha v. State of Andhra Pradesh (1997)	Mining leases in Scheduled Areas.	Nullified leases; emphasized protection for tribal lands.	Strengthened rights of indigenous communities and equitable development.
Lily Thomas v. Union of India (2000)	Validity of bigamy laws amidst religious conversion.	Ruled that a second marriage without divorce is void.	Reinforced adherence to personal laws and gender equality issues.
I.R. Coelho v. State of Tamil Nadu (2007)	Validity of laws in the 9th Schedule.	Laws in the 9th Schedule can be reviewed for constitutional validity.	Affirmed judiciary's role in legislative oversight.
Pedophilia Case (2011)	Involvement of British nationals in child sexual abuse.	Upheld convictions; emphasized the seriousness of child protection.	Reinforced commitment to prosecuting crimes against children.
Aruna Shanbaug Case (2011)	The nurse is in a vegetative state due to assault.	Permitted passive euthanasia under strict guidelines.	Addressed end-of-life rights and personal dignity.
NOTA Judgment (2013)	Introduced the option of None of the Above (NOTA) in elections.	Ruled voters should have the right to reject all candidates.	Enhanced electoral democracy by allowing voter disapproval.
Lily Thomas v. Union of India (2013)	Automatic disqualification of convicted elected representatives.	Ruled that two years of imprisonment leads to automatic disqualification.	Reinforced accountability in political representation.
Nirbhaya Case (2014)	Brutal gang rape of a woman leading to nationwide protests.	Upheld amendments to strengthen sexual offense laws.	Catalyzed significant legal reforms in protections for women.

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National Legal Services Authority v. Union of India (2014)	Recognized transgender individuals as a third gender.	Affirmed rights and need for affirmative action for transgender persons.	Advanced rights of transgender individuals, promoting inclusivity.
Triple Talaq Judgment (2016)	Challenged the practice of instant triple talaq among Muslims.	Declared the practice unconstitutional; emphasized gender equality.	Reinforced women's rights in personal laws.
Right to Privacy Case (2017)	Constitutionality of the Aadhaar scheme.	Declared right to privacy as a fundamental right under Article 21.	Protected individual autonomy in the digital era, impacting data privacy laws.
Repealing Section 377 (2018)	Criminalization of consensual same-sex relations.	Decriminalized consensual same-sex relations; affirmed LGBTQ+ rights.	Marked a significant step toward equality and dignity for LGBTQ+ individuals.
L. Chandra Kumar Case (1997)	Scope of judicial review by Supreme Court and High Courts.	Asserted judicial review is part of the Constitution's basic structure.	Reinforced judiciary's role in protecting constitutional rights.
Puttaswamy Case (2017)	Privacy rights in the context of the Aadhaar scheme.	Reaffirmed right to privacy judgment.	Strengthened individual rights against privacy invasions.
Habeas Corpus Case (1976)	Legality of detentions during the Emergency period.	A majority favored state authority; notable dissent from Justice Khanna.	Highlighted tensions between state power and individual rights during extraordinary circumstances.
Romesh Thapar Case (1950)	Concerned with the restriction of the press and freedom of speech.	Struck down restrictions on press freedom.	Reinforced the importance of free speech and expression in

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			a democracy.

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